

Tentative Rulings for July 2, 2026, Probate Calendar

Judge James T. Chou
Department C

**APPEARANCES MAY BE MADE
IN PERSON
OR ON ZOOM.**

To Join a Zoom Meeting, please follow this link: www.marin.courts.ca.gov

1. Click on the “Virtual Courtrooms” icon and then on “Zoom Civil / Family / Probate Court Calendar Appearance Information”
 2. Scroll down to Department C – Probate for the connection information.
-

Any interested party who wishes to appear for oral argument on the tentative ruling **must do the following no later than 4:00 PM** one Court day prior to the scheduled hearing date (MCR 6.2.D):

1. Notify all other parties entitled to notice of the underlying petition, including the attorneys for represented parties; and
2. Advise the clerk’s office by leaving a message at **(415) 444-7046, option 5.**

There is no need to inform the Court of your intent to appear if the tentative ruling requires an appearance.

PLEASE NOTE: Probate cases that are designated as confidential by California law will not be posted online. For tentative rulings in those matters, please contact the judicial secretary at **(415) 444-7260**. Confidential cases include applications for Special Immigrant Juvenile Status.

PLEASE NOTE: Probate cases that are designated as confidential by California law will not be posted online. For tentative rulings in those matters, please contact the judicial secretary at **(415) 444-7260**.

Judge James T. Chou
Department C
9:00 Calendar

PR0000926 IN THE MATTER OF MICHAEL JOHN ROLL

First and Final Report of Administrator on Waiver of Account, and Petition for Allowance of Statutory Compensation to Administrator and Attorney for Ordinary Services, and Reimbursement of Costs Expensed, and for Final Distribution, filed by Theodore F. Roll III on 6/10/26.

Ruling. Absent objections, this Petition will be **granted without hearing.**

PR0001461 IN THE MATTER OF MARGRET PRAST SYMONS

First and Final Account and Report of Executor and Petition for Settlement Thereof, for (1) allowance Statutory Executor and Attorney's Compensation and Reimbursement of Costs, and (2) Final Distribution, filed by Kim Symons on 5/28/26.

Ruling. This matter is **continued to August 6, 2026, at 9:00 a.m.**, for notice to the Attorney General under Probate Code section 8111; and for the filing of a supplement to the petition which explains how the distributions to WildCare and Enriching Lives Through Music represent the intent of Decedent designating Wild Animal Care and Child Development as beneficiaries.

PR0001632 IN THE MATTER OF THE RESTATEMENT OF THE MERRIAM FAMILY TRUST

Verified Petition to Invalidate Purported Amendment to Merriam Trust, filed by Guillaume Jean Marie Crete on 1/21/26.

Ruling. **The parties are ordered to appear.**

PR0001681 IN THE MATTER OF JEAN VIA DE LA VISTA TRUST

Petition to Remove Co-Trustee Michael Barnett, filed by Charles Barnett on 5/1/26.

Ruling. **The parties are ordered to appear.**

PLEASE NOTE: Probate cases that are designated as confidential by California law will not be posted online. For tentative rulings in those matters, please contact the judicial secretary at [\(415\) 444-7260](tel:4154447260).

PR0001745 IN THE MATTER OF DOROTHY LEROUX LIVING TRUST

Petition for Order Confirming Title to Property, filed by Molly Henry on 3/30/26.

Ruling. Absent objections, this Petition will be **granted without hearing**.

**PR0001764 IN THE MATTER OF THE SURVIVOR'S TRUST UNDER THE MCCULLOUGH LIVING TRUST
DATED NOVEMBER 30, 1992**

Petition for Instructions: (1) Ordering that Dona McCullough Is Appointed the Trustee for the Trusts of Patrick McCullough, Megan McCullough, and Christopher McCullough Under the Survivor's Trust Under the McCullough Living Trust Dated November 30, 1992 as Amended Effective on the Date of the Entry of the Court's Order; (2) Ordering All of the Assets of Those Trusts Be Transferred to Dona McCullough as Trustee Within Ten (10) Calendar Days of Entry of the Court's Order; (3) Denying Brian J. McCullough and Lawrence I. McCullough the Use of Any Trust Assets in Relation to This Proceeding or the Subject Trusts and That, If They Have Utilized Any Such Funds, Surcharging Them for Those Funds and Ordering Them to Return Such Funds to the Subject Trusts; (4) Enjoining Brian J. McCullough and Laurence I. McCullough from Further Breaching Their Fiduciary Duties; (5) Denying Any Trustee Fees to Brian J. McCullough and Lawrence I. McCullough in Relation to the Subject Trusts, filed by Patrick McCullough, Megan McCullough, and Christopher McCullough on 4/13/26.

Ruling. **The parties are ordered to appear.**

PR0001794 IN THE MATTER OF PAUL KRAUS TRUST

Trust – Copy of Trust

Ruling. This trust is not under court supervision at this time; therefore, this matter is **ordered off calendar**.

PR0001806 IN THE MATTER OF TRUST B UNDER THE LEE FAMILY TRUST

Petition to Terminate Trust, filed by Michelle Lee Roberts and Eric M. Lee on 5/6/26.

Ruling. Absent objections, this Petition will be **granted without hearing**.

PR0001809 IN THE MATTER OF KAUSTUBH K. DAS

1. Petition for Letters of Administration, filed by Baishali Das on 5/15/26.
2. Status Conference.

Ruling. Absent objections, this Petition will be **granted without hearing**. Petitioner is **ordered to:**

1. **Comply** with the following future dates:
 - a. Final Inventory and Appraisal.

PLEASE NOTE: Probate cases that are designated as confidential by California law will not be posted online. For tentative rulings in those matters, please contact the judicial secretary at [\(415\) 444-7260](tel:4154447260).

- i. A status hearing for the filing of the Final Inventory and Appraisal shall be set on November 12, 2026, at 10:00 a.m. (Prob. Code, § 8800.)
 - ii. An appearance will be required on that date if the Final Inventory and Appraisal is not filed at least five court days prior to hearing. (Super. Ct. Marin County, Local Rules, rule 6.2(B), Filing, Hearing, and Continuance Procedures.)
- b. Status on Closing Estate.
 - i. Either (1) a Petition for Final Distribution; or (2) a Report on Status of Administration shall be filed by July 8, 2027, as required by Probate Code sections 12200 and 12201.
 - ii. A status hearing re filing the Petition or Report shall be set on July 29, 2027, at 10:00 a.m.
 - 1. If neither document has been timely filed, an appearance will be required.
 - 2. If the Petition or Report is timely filed, the hearing will be set on July 29, 2027, at 9:00 a.m.
- 2. **Submit** a proposed Order to the Court on the mandatory Judicial Council Form “Order for Probate” within five court days of this order. (Judicial Council Forms, form DE-140; Super. Ct. Marin County, Local Rules, rule 6.2(C), Submission of Proposed Orders.)

PR0001822 IN THE MATTER OF KAREN SUE FORESTER

Petition to Determine Succession to Primary Residence, filed by Jack Forester on 5/21/26.

Ruling. Absent objections, this Petition will be **granted without hearing**.

PR0001824 IN THE MATTER OF BRENDA JANE PEACE

Petition for Letters of Administration, filed by Monica E. Pence on 5/26/26.

Ruling. Absent objections, this Petition will be **granted without hearing**. Petitioner is **ordered to comply** with the following future dates:

- 1. Final Inventory and Appraisal.
 - a. A status hearing for the filing of the Final Inventory and Appraisal shall be set on November 12, 2026, at 10:00 a.m. (Prob. Code, § 8800.)
 - b. An appearance will be required on that date if the Final Inventory and Appraisal is not filed at least five court days prior to hearing. (Super. Ct. Marin County, Local Rules, rule 6.2(B), Filing, Hearing, and Continuance Procedures.)
- 2. Status on Closing Estate.
 - a. Either (1) a Petition for Final Distribution; or (2) a Report on Status of Administration shall be filed by July 8, 2027, as required by Probate Code sections 12200 and 12201.
 - b. A status hearing re filing the Petition or Report shall be set on July 29, 2027, at 10:00 a.m.
 - i. If neither document has been timely filed, an appearance will be required.

PLEASE NOTE: Probate cases that are designated as confidential by California law will not be posted online. For tentative rulings in those matters, please contact the judicial secretary at [\(415\) 444-7260](tel:4154447260).

- ii. If the Petition or Report is timely filed, the hearing will be set on July 29, 2027, at 9:00 a.m.

PR0001829 IN THE MATTER OF ROCKNE BAILEY WOODSON

Petition for Letters of Administration, filed by Forrest Woodson on 5/28/26.

Ruling. Absent objections, this Petition will be **granted without hearing**. Petitioner is **ordered to comply** with the following future dates:

1. Final Inventory and Appraisal.
 - a. A status hearing for the filing of the Final Inventory and Appraisal shall be set on November 12, 2026, at 10:00 a.m. (Prob. Code, § 8800.)
 - b. An appearance will be required on that date if the Final Inventory and Appraisal is not filed at least five court days prior to hearing. (Super. Ct. Marin County, Local Rules, rule 6.2(B), Filing, Hearing, and Continuance Procedures.)
2. Status on Closing Estate.
 - a. Either (1) a Petition for Final Distribution; or (2) a Report on Status of Administration shall be filed by July 8, 2027, as required by Probate Code sections 12200 and 12201.
 - b. A status hearing re filing the Petition or Report shall be set on July 29, 2027, at 10:00 a.m.
 - i. If neither document has been timely filed, an appearance will be required.
 - ii. If the Petition or Report is timely filed, the hearing will be set on July 29, 2027, at 9:00 a.m.

PR0001833 IN THE MATTER OF PHILLIP D. PHYTHIAN

Petition for Probate of Will and for Letters Testamentary, filed by Ann E. Hardham on 6/1/26.

Ruling. This matter is **continued to July 30, 2026, at 9:00 a.m.** Petitioner is **ordered to:**

1. **File** Proof of Publication of Notice. (Prob. Code, § 8120 et seq.)
2. **Mail** notice of the Petition for Probate to all interested parties using the mandatory Judicial Council Form “Notice of Petition to Administer Estate.” (Judicial Council Forms, form DE-121.)
3. **File** a copy of the DE-121 that was mailed, with the Proof of Service completed on page 2 showing that all interested parties received at least fifteen days’ notice of the Petition for Probate. (Prob. Code, § 8110.)
4. All documents **must be filed** at least five court days prior to hearing. (Super. Ct. Marin County, Local Rules, rule 6.2(b), Filing, Hearing, and Continuance Procedures.)

PLEASE NOTE: Probate cases that are designated as confidential by California law will not be posted online. For tentative rulings in those matters, please contact the judicial secretary at [\(415\) 444-7260](tel:4154447260).

PRO1801087 IN THE MATTER OF DONN R. SCHOENMANN

Motion for New Trial and/or Other Relief, filed by E. Lynn Schoenmann on 1/30/26.

Ruling. This matter is **dismissed as moot**. The Court confirms the jury trial set to begin on October 27, 2026, at 10:00 a.m. in Department J; and the status conference set for December 10, 2026, at 9:00 a.m. in Department C.

PRO2300893 LOUIS THEODORE KIRCOS, ESTATE OF

Sixth Report of Status of Administration and Petition for Continuation of Administration of Estate, filed by Caron Schmierer on 6/3/26.

Ruling. Absent objections, the Sixth Report of Status of Administration is **accepted and approved**. Personal Representative is ordered to comply with the following future dates:

1. Status on Closing Estate.
 - a. Either: (1) a Petition for Final Distribution; or (2) a Seventh Report of Status of Administration shall be filed by September 17, 2026, as required by Probate Code sections 12200-12201.
 - b. A status hearing re filing the Petition or Report shall be set on October 8, 2026, at 10:00 a.m.
 - i. If neither document has been timely filed, an appearance will be required.
 - ii. If the Petition or Report is timely filed, the hearing will be set on October 8, 2026, at 9:00 a.m.

PLEASE NOTE: Probate cases that are designated as confidential by California law will not be posted online. For tentative rulings in those matters, please contact the judicial secretary at [\(415\) 444-7260](tel:4154447260).

Judge James T. Chou
Department C
10:00 Calendar

PR0000176 IN THE MATTER OF MARC PANKIN

Status Conference - Final Distribution or Report on Status of Administration

Ruling. Personal representative Matthew Pankin and attorney Bryn Rohde-Davies are **ordered to appear**.

PR0000431 IN THE MATTER OF LYNELL WHELOCK

Status Conference - Final Distribution or Report on Status of Administration

Ruling. Personal representative Forbe Myers and attorney James Hastings are **ordered to appear**.

PR0001556 IN THE MATTER OF JOHANNA PETERSEN

Status Conference – Final Inventory and Appraisal

Ruling. Personal representative Loris Davanzo and attorney Richard Brouillet are **ordered to appear** to address Item 5 of the Final Inventory and Appraisal filed on June 25, 2026.

PR0001562 IN THE MATTER OF SHASHIKANT SINGAPURI

Status Conference – Final Inventory and Appraisal

Ruling. This matter is ordered **off calendar**; the Final Inventory and Appraisal has been filed.

PR0001585 IN THE MATTER OF WHITNEY MORROW BOLLIER

Status Conference – Final Inventory and Appraisal

Ruling. This matter is ordered **off calendar**; the Final Inventory and Appraisal has been filed.

PLEASE NOTE: Probate cases that are designated as confidential by California law will not be posted online. For tentative rulings in those matters, please contact the judicial secretary at [\(415\) 444-7260](tel:4154447260).

PR0001622 IN THE MATTER OF LAURENCE LEWIN

Status Conference – Final Inventory and Appraisal

Ruling. This matter is **continued to October 8, 2026, at 10:00 a.m.**

PR0001624 IN THE MATTER OF STEVEN CHALLIS PODESTA

Status Conference – Final Inventory and Appraisal

Ruling. Personal representative Alexander Podesta and attorney Jessica Gordon are **ordered to appear.**

PR0001629 IN THE MATTER OF JAMES RUSSELL TOWNSLEY

Status Conference – Final Inventory and Appraisal

Ruling. This matter is ordered **off calendar**; the Final Inventory and Appraisal has been filed.

PRO2102394 IN RE THE SANDY FIELDS REVOCABLE LIVING TRUST

Status Conference – Second Account

Ruling. Trustee Sarah Berger is **ordered to appear.**

PLEASE NOTE: Probate cases that are designated as confidential by California law will not be posted online. For tentative rulings in those matters, please contact the judicial secretary at [\(415\) 444-7260](tel:4154447260).

Judge James T. Chou
Department C
1:30 Calendar

PR0000186 IN THE MATTER OF MORGAN JOSEPH BRIONES

Status Conference - Confirmation of opening blocked account; expungement of bond; reimbursement of funds

Ruling. The Guardians have filed a Merrill statement indicating that \$12,006 has been placed in the account ending in -3978. Guardians are **ordered to appear** to provide proof that this is a blocked account as previously ordered.

PR0001842 IN THE MATTER OF JACK KOH GOLDSTEIN

Petition for Appointment of Temporary Conservator of the Person and Estate, filed by Kristen Koh and Athena Koh Goldstein on 6/3/26.

Ruling. **The parties are ordered to appear.**

PRO39871 SIMA YAMIN, CONSERVATORSHIP OF THE PERSON AND ESTATE OF

Petition - Accounting - Sixteenth Account or Why not Timely Filed

Ruling. Co-Conservators Soha Yamin and Issa Yamin, and attorney Kathryn Schofield are **ordered to appear**.

PLEASE NOTE: Probate cases that are designated as confidential by California law will not be posted online. For tentative rulings in those matters, please contact the judicial secretary at [\(415\) 444-7260](tel:4154447260).